

ADDRESSED TO:

Senator the Honourable Michaelia Cash
Shadow Attorney-General of Australia
Leader of the Opposition in the Senate
Liberal Senator for Western Australia
Parliament House, Canberra ACT 2600

Mr Angus Taylor MP
Leader of the Opposition
Member for Hume
Parliament House, Canberra ACT 2600

RE: Urgent Legal Reform — Bail Surety Industry, Legal Defence Insurance & Digital Consent Evidence Admissibility

Date: 24 May 2026 | Document Classification: Opposition Political Brief | ConsentVault Parliamentary Petition

EXECUTIVE SUMMARY

ConsentVault is an Australian legal technology platform that has identified three critical gaps in our justice system that disproportionately harm men accused of sexual offences. We are presenting this briefing to the Opposition as we believe these reforms represent a significant political opportunity — championing the presumption of innocence, access to justice, and evidence-based legal reform for all Australians.

The core problem: Men accused of sexual offences in Australia face three compounding injustices that have nothing to do with guilt or innocence:

- 1. They cannot afford the legal fees to mount a proper defence — no insurance product covers this.
- 2. They cannot find a surety for bail — so they stay imprisoned on remand and accept unjust plea deals just to get out.
- 3. They have no way to prove consent existed — because no evidence was recorded at the time.

ConsentVault has built the technology to solve Problem 3. We are asking the Opposition to champion legislation to solve Problems 1 and 2.

THE DATA — WHY THIS MATTERS NOW

STATISTIC	FIGURE	SOURCE
Guilty outcomes in sexual assault cases reaching court ruling	77%	ABS, 2021
Maximum sentence — sexual intercourse without consent	14 years	Australian Criminal Code
Standard non-parole period	7 years	Australian Criminal Code
Average prison term served by those convicted	4.5 years	ABS, 2021
Wrongful convictions involving false allegations or perjury	62%	National Registry of Exonerations
AVO breach convictions that are men	87.7%	BOCSAR NSW, 2015

Making a false AVO claim — is it a criminal offence?	NO	NSW Crimes Act 1900
Estimated false rape allegations (peer-reviewed meta-analysis)	2–8%	Ferguson & Malouff, 2016
Child sexual abuse allegations found true in contested family cases	12%	AJSI, 2021

THREE LEGISLATIVE REFORMS WE ARE REQUESTING

REFORM 1	Legal Defence Insurance — The Accused Persons Insurance Act The Problem: Currently no insurance product in Australia covers legal defence costs for persons accused of sexual offences. Standard Legal Expense Insurance policies (ARAG Australia, Tudor Insurance) explicitly exclude criminal sexual charges. A man accused of rape has no financial protection regardless of his innocence. Our Ask: Legislate a new category of personal legal expense insurance — the Accused Persons Defence Insurance — covering up to \$100,000 in criminal defence legal fees for Australians accused of sexual offences, to be regulated by APRA and sold by licensed insurers.
REFORM 2	Regulated Bail Surety Industry — The Commercial Bail Reform Act The Problem: Australia is one of the few common law countries without a regulated commercial bail surety industry. In the United States, Canada and parts of Europe, licensed bail bond companies act as surety. In Australia, men remain imprisoned on remand — sometimes for months — because they cannot find a friend or family member to provide surety. Many accept unjust plea deals simply to be moved to minimum security rather than remain in remand. Our Ask: Establish an ASIC-regulated commercial bail surety industry in Australia, enabling licensed companies to act as professional surety for bail applications. Set maximum fee schedules and consumer protections. Model on Canadian professional surety legislation.
REFORM 3	Digital Consent Evidence — The Evidence Amendment (Digital Consent) Act The Problem: Australian courts have no specific provision for the admissibility of digital consent records. A timestamped video declaration, GPS verification, biometric facial ID, and digitally signed consent certificate — all captured contemporaneously — have no guaranteed pathway to admission as evidence. This legislative gap disadvantages the accused in 'he said, she said' cases where consent is the sole question before the jury. Our Ask: Amend the Evidence Act 1995 (Cth) to specifically provide for the admissibility of contemporaneous digital consent records as supporting evidence in sexual consent proceedings, subject to authentication requirements set by regulation.

THE PARLIAMENTARY PETITION

Petition Title	Petition for Legal Protection Reform — Bail Surety, Legal Insurance & Digital Consent Evidence
Addressed To	The Honourable the Speaker and Members of the House of Representatives in Parliament Assembled

Signature Target	10,000 verified signatures — triggering mandatory Legislative Review Committee investigation
Current Signatures	Growing — real-time counter at consentvault.com.au/petition
Verification Method	Each signatory provides: full name, DOB, state, facial verification photo, driver's licence/passport copy
Key Threshold	10,000 signatures → Mandatory referral to Legislative Review Committee which MUST investigate and
20,000 Threshold	Announced by the Speaker of the House — printed in full in Hansard

WHY THIS IS A POLITICAL OPPORTUNITY FOR THE OPPOSITION

■■ Presumption of Innocence	Championing access to justice for accused persons is constitutionally sound, legally defensible, and politically popular. The presumption of innocence is a bedrock of Australian law — and the current system undermines it financially.
■■■■■ Broad Voter Appeal	Every Australian man has a mother, sister, wife or daughter who has seen a man wrongly accused. This is not a fringe issue — it affects families across all demographics, income levels and electorates.
■ Policy Gap = Political Wedge	The Albanese government has focused heavily on victim-centred law reform. There is a clear gap — and political opening — for the Opposition to champion the accused's side of justice without opposing victims' rights.
■ 10,000 Verified Signatures	A petition with 10,000 verified identities — including facial photo and government ID — is vastly more credible than a standard online petition. This is a serious community mandate, not a click campaign.
■ Media-Friendly Campaign	The combination of technology (QR consent, facial verification), legal reform, and men's rights is a compelling media story. A press conference by the Shadow Attorney-General with the ConsentVault team would generate national coverage.

WHAT WE ARE ASKING OF THE OPPOSITION

1	Present the ConsentVault Parliamentary Petition	For each 10,000 verified signatures, we ask a senator to formally present the petition
2	Introduce Three Private Member's Bills	Introduce the Accused Persons Defence Insurance Bill, the Commercial Bail Reform Bill, and
3	Senate Estimates Question	Raise ConsentVault's reform agenda in Senate Estimates — asking the Attorney-General
4	Joint Press Conference	Participate in a joint press conference with the ConsentVault team presenting the petition
5	Refer to Senate Legal Committee	Use Opposition numbers in the Senate to refer the question of bail surety industry reform

CONTACT DETAILS	ConsentVault Pty Ltd ABN: 52 347 989 391 consentvault.com.au Petition: consentvault.com.au/petition Email: petition@consentvault.com.au We are available for a briefing meeting in Canberra, Perth, or via video conference at your convenience.
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